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READING THE MERCHANT OF VENICE THROUGH ADORNO

FOR CHRISTIAN LENHARDT

Adorno does not discuss *The Merchant of Venice*. He did relatively little literary criticism. Indeed, most people assume that Adorno's criticism is limited to a single sentence: "To write poetry after Auschwitz is barbaric."¹ Heartfelt, but an overstatement. Although he did argue that it would be "absurd" to hope for a "cultural resurrection" after the world had "outlived its own downfall," Adorno nevertheless recognized "authentic artists of the present ... in whose works the uttermost horror still quivers."² For him, Beckett's *Endgame* best expresses the character of late modernity, a rare work of art after Auschwitz. For me, *The Merchant of Venice* is a play that best discloses the dynamic of the rise of modern capitalism, showing its complete transformation of economy, society, polity, religion and culture, a work of art that strikingly intimates what was to come: the "uttermost horror" already quivers in it. I will discuss the play in Adorno's spirit. I will not make Shakespeare out to be a proto-Marxist prophet who wrote *The Merchant of Venice* as a second *Book of Daniel*. Nothing so ponderous. Nor will I indulge in edifying discourses, playing with clever textual affinities between *The Merchant of Venice* and *Endgame*: Hamm and Clov as Antonio and Shylock bound to one another in perpetuity; Hamm's admission that he looked into a wound in his breast and could not see his heart; Clov's sudden transformation at the sight of a child approaching the house. Nothing that *faux*. *The Merchant of Venice* is a play in which the nature of capitalism and the consequences of its predominance are presented dramatically; its critique of modernity is made from a pre-modern ground; and for that reason, it is all the more lucid and cutting than post-modern critiques, most of which remain thoroughly modern in their premises. But *The Merchant* is just a play, and ostensibly a comedy. If it shares any unique literary feature with *Endgame*, it is the odd nature of its genre. The comic and the tragic are inseparable in it, so much so that one often does not know whether to

¹ Theodor Adorno, "Cultural Criticism and Society" (1949) in *Prisms* (Cambridge: MIT Press, 1981), 34.

² Theodor Adorno, "Back to Those Twenties: Picking Up the Pieces in Germany," *Times Literary Supplement* (13 October 1961), 717.

laugh or cry. The interpretive ambiguities of Shakespeare's blending of genres in *The Merchant* are deliberate. They confuse and disturb us somewhat differently today because we know the shocking history of anti-Semitism. However, if we were able to suspend our recollection of Auschwitz temporarily—and the attempt might be necessary if we are to deny Hitler yet another posthumous victory—we would find that the events of the tragicomedy of Venice and Belmont are already enough to horrify us.

There are so many odd things in the play that should shock us—or rather, shock and amuse us simultaneously. There are a surprising number of jokes about money, for instance; Shakespeare includes them at the most peculiar times, at moments when our attention is diverted by weighty matters; and they have the unusual effect of both undermining the drama and sharpening what is at stake in it. When an apprehensive Jessica bursts into a discussion from which she has been excluded as a "stranger" and an "infidel" (3.2. 217, 237),³ she tells everyone at Belmont that Shylock would not take "twenty times the value" of the bond to release Antonio from the forfeiture (3.2. 286-288)—perhaps a lie, but let it stand as a straight-line. Upon hearing that the debt is only three thousand ducats, Portia immediately offers twice the amount, then four times, even twelve times the amount; and in a final flourish offers "gold/ To pay the petty debt twenty times over" (3.2. 306-307)—but not a ducat more. Later, Bassanio cuts a comparably valiant figure in the courtroom: with twenty times the debt in his pocket, we assume, he offers Shylock double the principal; Shylock replies that he would not take twelve times the amount (4.1. 84-87); Bassanio waits a good long while and eventually makes a final offer: he will "pay it ten times o'er" (4.1. 209). Then, in the tense moments in which Shylock's sentence is being determined, my favorite: Antonio gallantly offers to forego his entitlement to half of Shylock's worldly goods ... on condition that he gets the other half (4.1. 379-380). It might be possible to excuse some part of Antonio's zealous participation in Shylock's prosecution if one keeps in mind that he himself has been rather badly used by those he calls his friends. Loans are not complicated. His debt to Shylock was due on a specific day; his financial ruin was known to everyone for weeks, and likely a full month, before the due date; and no one gave him or lent him the money he needed in time, though he had often done so for them in similar circumstances (3.3. 22-23).⁴

³ The edition of *The Merchant of Venice* used throughout is ed. David Bevington (New York: Bantam, 1988).

⁴ An obvious, and rather significant detail, one would think; but little has been made of it in scholarship on the play, though it has been known at least since it was pointed out in Heinrich Heine. See "Shakespeare's Maidens and Women" (1838) in *The Works of Heinrich Heine*, vol. 1, trans. C. G. Leland (London: William Heinemann, 1891), 380-381. Recently, Edward Andrew has written: "there is no Christian upon whom Antonio could rely when he is in desperate straits—that is, from the time when Shylock announces publicly his desire for revenge ... until the expiry date of the bond." However, Andrew subordinates

The comic undercurrents of the tragic plot make it darker than it seems at first. Correspondingly, the comic plot has an unseemly underside—not a dramatic quality, but rather a suspicious, subversive vulgarity. The last words of the play are notorious: Gratiano's open allusion to his wife's genitals—"Nerissa's ring"—when he considers how best to spend the two hours remaining before dawn. Gratiano's coarseness is not a false note; he is "grace" itself; as always, he only says "grossly" (5.1. 266) what others say with more sophistication. Portia's witty banter in the play's final act, for example: the ring she gave Bassanio is not metaphorically equivalent to her genitals; she says, instead, that it confers upon anyone who wears it the right of access to her genitals (5.1. 224-229, 258-259). Gratiano first spoke grossly in equating flesh and gold when Bassanio welcomed the prospect of a double marriage feast. Gratiano turns to Nerissa and says: "We'll play with them the first boy for a thousand ducats" (3.2. 213). Not quite a pound of flesh for three thousand—but then this is a different market. We imagine Bassanio above such crudeness. And yet, when Portia coyly expresses her faith that Bassanio would never part with her ring, not "for the wealth/ That the world masters," his first thought is significant: "I were best to cut my left hand off/ And swear I lost the ring defending it" (5.1. 172-177)—a pound of flesh, more or less, for whatever the ring represents in Belmont. In contrast, one should recall that Shylock would not have given the ring he had of his late wife for all the colonial, mercantilist wealth represented by "a wilderness of monkeys" (3.1. 113-116). Bassanio and Portia make a nice couple, if one looks only to their subjective compatibility and happiness. They play the same sorts of games and tell the same sorts of jokes. When Portia first tells Nerissa her plan that they should go to Venice disguised as men, she offers "any wager" that she'll be the manlier when they are "accomplished/ With what [they] lack" (3.4. 61-62)—money and flesh again, or rather the appearance of it. It might be possible to excuse some part of the "thousand raw tricks" Portia plays in order to wear the pants in her own house if one remembers that Bassanio's first description of her, the "lady richly left," presents her as "a golden fleece"—indistinguishably flesh and wealth. There is only one identification of flesh and money that is more

the point to a unique argument that Shylock's initial offer of friendship to Antonio is an expression of "wanting Antonio as a son-in-law." *Shylock's Rights: A Grammar of Lockian Claims* (Toronto: University of Toronto Press, 1988), 40. Ken Masugi has also noted the problem. However, he interprets it as evidence of Antonio's "monstrosity" as Shakespeare's caricature of Christianity paralleling Shylock as his caricature of Judaism. He writes: "If [Antonio] had three months to pay off his debt, ... why did he not ask for a loan from some of his friends and thus pay off the bond?" "Race, the Rule of Law, and *The Merchant of Venice*: From Slavery to Citizenship," *Notre Dame Journal of Law, Ethics and Public Policy* 11.1 (1997), 208. Heine's evaluation of Antonio's friends is not as sanguine as Masugi's; and there is a good deal of irony in the brief exchange between Antonio's servant, likely relaying a request for money, and Salerio and Solanio (3.1. 70-74).

shocking than Bassanio's remark. Not the bond. Rather, Shylock's revelation that the Venetians own slaves, buy and sell them, and abuse them as they like (4.1. 90-93). Perhaps Portia's household does as well. Why not? We only know with certainty that Shylock owns no slaves.

Comedy and tragedy, Belmont and Venice, Christians and Jews—the seemingly clear distinctions of *The Merchant of Venice* dissolve and everything suggests its opposite. However, the play's ambiguities do not open into dialectical arbitrariness. The inversion of our impressions redoubles the force of the most important distinctions, the ethical ones. This is a play in which Jews become Christians, one way or another. And the Christians all act the way they assume Jews do. It might seem surprising that this odd feature of Christian anti-Semitism is the basis of Shakespeare's prescient indictment of modernity. To see it in *The Merchant of Venice*, one need only adopt a hermeneutic compatible with the familiar advice to render to Caesar the things that are Caesar's, and to God the things that are God's (*Matt.* 22: 21): just follow the money, and understand all biblical or religious references in the tenor in which they are made. It then becomes clear that, in this play, Shakespeare shows us the rise of venture capitalism in the context of Venetian mercantile imperialism and the process by which Christianity came to serve as a justification and sanctification of commercial success—insights developed well before Adam Smith and with as keen a critical understanding as Max Weber. He also shows us the destruction of traditional forms of the household and the rise of a new form of family capital—the household or family as corporation—and the parallel redefinition of the traditional virtues. Furthermore, the play's courtroom scene is Shakespeare's study of the manner in which the modern confusion of power and religion overrides the norms of the rule of law. And the domestic parallels to the rise of political barbarism are evident in Shakespeare's account of the rise of vulgarity in the guise of bourgeois charm and refinement: the comedy of Belmont is both the first sitcom and the first critique of banal celebrations of the emptiness of bourgeois life, a sketch of domesticated, everyday Machiavellianism that is far more damning than Machiavelli's own *Mandragola*. Finally, there is Shylock's ruin. Shylock is not simply a Jew in a Christian world for Shakespeare. Venice and Belmont are not the traditional, Christian world: they are the reality and illusion of modernity. And Shylock is modernity's other: a scapegoat for its excesses, a sacrifice for its celebrations, and a symbol of the cost of any resistance to its totalizing impetus.

In *Dialectic of Enlightenment*, Adorno and Horkheimer argue that "there has always been an intimate link between anti-Semitism and totality;" and that "There is no anti-Semite who does not basically want to imitate his mental image of a Jew."⁵ They describe modernity as a society run by a "political racket: this society, in which politics is not only a business but business the whole of politics,

⁵ Max Horkheimer and Theodor Adorno, *Dialectic of Enlightenment*, trans. J. Cumming (New York: Continuum, 2000), 172, 184.

is gripped by a holy anger over the retarded commercial attitudes of the Jews and classifies them as materialists and hucksters who must give way to the new race of men who have elevated business into an absolute." The focus of their critique is the economic function of bourgeois anti-Semitism, "the concealment of domination in production." However, they also discuss the process through which business racketeers emerged in the mercantile age and eventually became the bourgeoisie—"absolute monarch[s]" who had taken off "the bright garb of the nobility and donned civilian clothing."⁶ *The Merchant of Venice* is set in this period, a time in which Antonio the "royal merchant" (4.1. 29) gives way to Bassanio the salesman-turned-corporate-raider, whose band of upstart followers, "the Jasons" (3.2. 241), dress in splendid new liveries (2.2. 146-147), and whose ruthless business practices are entirely acceptable to the corrupt Venetian court. Neither Antonio nor Bassanio produce wealth; they merely redistribute it in their different ways. And yet that is the ostensible basis of their hatred of money-lending Jews. Throughout the period of the transformation of mercantile capitalism into bourgeois capitalism, Adorno and Horkheimer write, "Commerce was not [the Jews'] vocation but their fate. The Jews constituted the trauma of the knights of industry who had to pretend to be creative, while the claptrap of anti-Semitism announced a fact for which they secretly despised themselves; their anti-Semitism is self-hatred, the bad conscience of the parasite."⁷

Now, self-hatred is not the best diagnosis for the weariness Antonio suffers at the beginning of the play: Shakespeare was a better psychologist than Freud. The rest of Adorno's account, however, is perfectly in accord with Shakespeare's portrayal of the differences between the merchant and the Jew—as he has Portia-as-Balthasar state the opposition (4.1. 172). When Antonio joins the loan negotiations between Shylock and Bassanio, Shylock takes the opportunity to begin a discussion with him about the nature of business. He recounts the story of how Jacob bargained with Laban for his wages and eventually prospered through hard work, skillful husbandry and a bit of magic (*Genesis* 30: 26-43) in order to justify his own way of taking care of his household as honest "well-won thrift," the sort of thriftiness that is a "blessing" (1.3. 47, 88). Antonio rudely interrupts him to deny that Jacob took interest, but Shylock persists. He even agrees with Antonio: "No, ... not as you would say/ Directly interest" (1.3. 74-75). There are direct and indirect ways of taking interest, of profiting, it would seem. For Shylock, this is the only difference between the money-lender and the merchant. For Adorno as well. Whether one understands economics in the traditional sense as household management or in the Marxist sense of the political economy of production and exchange, neither the money-lender nor the commodity trader produces wealth. However, the merchant insists that he does; he presents himself as the provider of commodities that satisfy people's needs; and he damns the money-lender as the only parasite in society, perhaps in bad conscience and perhaps not. For Antonio, Shylock trades in "barren metal" (1.3.

⁶ *Dialectic of Enlightenment*, 173.

⁷ *Dialectic of Enlightenment*, 175-6.

132). It should be noted, however, that Shylock's household is not barren, and that Antonio's formidable profit-taking is in support of no family. Antonio offers a radically different interpretation of the story of Jacob's wages: "This was a venture, sir, that Jacob served for,/ A thing not in his power to bring to pass,/ But swayed and fashioned by the hand of heaven" (1.3. 89-91). In so many words, Shakespeare has Antonio state an understanding of capitalism that expresses the relation between Adam Smith's understanding of the workings of the invisible hand in the marketplace and the Calvinist understanding of evidence of election or salvation in worldly prosperity. Success in business is divine favor, not a worldly blessing but salvation itself. It is not the pagan goddess Fortuna's hand at work, but rather the Christian God's. Of course, this is madness. The world is not so constituted; and it constantly resists such fantasy. For instance, a paradox: not all who are good Christians become wealthy. Where has their rightful wealth gone? To distract the attention of the Christian poor, another paradox is useful: not all who are wealthy are divinely chosen. The thieving Jews! Their worldly success must have some other, more sinister cause. Shylock would argue interpretations of the Jacob story further with Antonio, but Antonio cuts him off in a vulgar way. He turns aside and says: "Mark you this, Bassanio,/ The devil can cite Scripture for his purpose" (1.3. 95-96). For Antonio, the difference between mercantilist and money-lender is the difference between the hand of God and the hand of Satan. The damnable Jew serves well as a scapegoat for the reality of his own profit-taking, his indirect interest. But in Shakespeare's portrayal of Antonio's psychology, the scapegoating projection rebounds: Antonio's comment that the devil cites Scripture is itself a citation of Scripture (*Matt.* 4: 5-7).

When Salerio and Solanio cannot determine a cause for Antonio's sadness in the play's opening, Gratiano shows up, accompanying Bassanio, and offers an astute diagnosis: "You have too much respect upon the world;/ They lose it that do buy it with much care" (1.1. 74-75). Spoken like a good Christian, if a little garbled. Gratiano alludes to several passages in the New Testament. "For whosoever will save his life shall lose it," Jesus said to his disciples, "and whosoever shall lose his life for my sake, shall find it. For what shall it profit a man though he should win the whole world, if he lose his own soul?" (*Matt.* 16: 25-26).⁸ In John's *First Epistle*, the faithful are similarly reminded: "Love not the word, neither the things that are in the world. If any man love the world, love of the Father is not in him" (1 *John* 2: 15). And in the Sermon on the Mount, Jesus states the opposition bluntly — "No man can serve two masters. ... You cannot serve God and riches" (*Matt.* 6: 24) — as the conclusion to a gentler formulation: "Lay not up treasures for yourselves upon the earth, ... but lay up treasures for yourselves in heaven. ... For where your treasure is, there will your heart be

⁸ The facsimile edition of the 1560 *Geneva Bible* (Madison: University of Wisconsin Press, 1969) will be used throughout for wording and phrasing of biblical passages; the modernization of spelling and punctuation is my own. The *Geneva Bible* is the one to which Shakespeare seems most often to refer.

also" (*Matt.* 6: 19-21). Gratiano is inadvertently right: Antonio is too invested in the world—not in the sense of serving riches instead of God, but rather in the new, modern way that identifies the two. In replying, Antonio also attempts to speak like a good Christian, denying all inappropriate concerns: "I hold the world but as the world, Gratiano,/ A stage where every man must play a part,/ And mine a sad one" (1.1. 77-79). In the dedivinized emptiness of a world that is merely world in the absence of its antithesis, all human endeavor is role-playing. But for a Christian living in expectation, the latter does not follow: God and the effects of His hand are never entirely absent from the world. Nor are they entirely absent for Antonio. They just seem to be, because all of his wealth is invested in his ships and commodities at sea, leaving him without even three thousand ducats of petty cash. His anxiety over the fate of his ventures, given the significance of the outcome, is evident; and his protestations to the contrary notwithstanding, the world-weary sadness he puts on is as hypocritical as the dismal appearance put on by the hypocrites condemned by Jesus, that their fasting might be seen by men (*Matt.* 6: 16-17).

The ebb and flow of commodities and wealth is the compass of Antonio's various moods throughout the play. He is initially flush enough to bluster to the Jew about successful ventures as God's will, though he covers his apprehension about his ventures at sea with a feigned indifference.⁹ At the end of the play, he finds himself in Belmont; and when Portia presents herself as Fortuna announcing a new dispensation to all assembled, Antonio is unexpectedly given the equivalent of "three of [his] argosies/ ... richly come to harbor" (5.1. 276-277). His response is telling: "Sweet lady, you have given me life and living" (5.1. 286). Not the means to life, but life itself. It is Shylock who says that money and property are the means for life—the prop that sustains the house, not the house itself (4.1. 373-375). For Antonio they are identified. If they were not identified, why else would he react as he does to his bankruptcy? When all his ships are lost and his wealth is scattered on the seabed, he despairs. If it cannot be certain that his losses are evidence that God has deserted him, then it is an unmistakable fact that all his friends and the Duke himself have deserted him: not a Christian soul in Venice offers him money to pay his debt to Shylock—perhaps they too believe that his economic collapse was "fashioned by the hand of heaven" (1.3. 91) and are afraid to question God's will by acting to assist him in friendship or charity. And so, "in disgrace with fortune and men's eyes" (*Sonnet* 29), Antonio does nothing to defend himself against Shylock's wrath. He could easily leave

⁹ Marc Shell observes: "It is odd that Antonio does not insure his ships. Marine insurance was common in Venice by the fifteenth century and in England by the sixteenth." Although he describes Antonio as a "zealot" for it, he does not suggest that there might be religious reasons for why Antonio is such an "unwise merchant." Marc Shell, "The Wether and the Ewe: Verbal Usury in *The Merchant of Venice*," in *Money, Language, and Thought: Literary and Philosophical Economies from the Medieval to the Modern Era* (Berkeley: University of California Press, 1982), 54 and fn. 19.

Venice before the due date of the bond; and indeed when Shylock decides to hound Antonio by acting legally on the literal sense of the bond's forfeiture penalty, he expects the consequence to be that Antonio will take himself "out of Venice" (3.1. 119-121). Instead, Antonio stays. Stranger still, when the case comes before the Duke and the court, Antonio makes no defense. It would be a simple enough matter: the literal sense of the forfeiture is an illegal act; the penalty is thus null and void. The Duke has the power to dismiss the case (4.1. 104; cf. 3.3. 24-25); he thinks, as do others, that it is a nuisance suit that Shylock is pursuing as far as the law will allow (4.1. 17-19); and even Shylock himself describes it as a "losing suit" (4.1. 62). Nevertheless, Antonio bares his breast and welcomes the knife. It is the only role he can think to play that might save face. If his bankruptcy is a divine sign, then either he is one of the damned or he has been chosen for a glorious part in the unfolding of a sacred history: he will lose his life in order to save it; he will give it up freely for God's sake, as he understands God and God's workings in the world; he will allow himself to be sacrificed to the Jews, as Jesus was, in order that Venetian imperialism might be saved. The "commodity that strangers have/ With us in Venice" must be maintained (3.3. 27-28), and it is threatened by Shylock's suit because all the usurers in Venice—the "synagogue" (3.1. 122; cf. 4.1. 36-37)—are backing him. Without their capital, Venetian mercantile imperialism cannot prosper; and if it were to come to a choice, Antonio knows the Duke would not hesitate to sacrifice him to appease them (3.3. 26). What is a pound of flesh, or a barren, unaccommodated life, if by giving it up one wins everlasting fame as the savior of Venice's trade in the flesh of shiploads of slaves?

Antonio's plight is in part the consequence of Bassanio's cavalier manner of keeping his appointments. A distinguishing feature of the style the new Jasons affect is the tendency to keep people waiting. In business, one recognizes such behavior as an attempt to demonstrate importance or establish dominance; but to behave in this way toward one's friends and lovers? Lorenzo is several hours late to his own carefully planned elopement, unapologetically blaming his "affairs" for the delay when he speaks to his friends (2.6. 23) and saying nothing at all about it to Jessica. Bassanio is much worse: once he has the three thousand ducats in his pocket, it takes him almost three months to get to Belmont, a day's travel away, and he makes no effort to return in time to pay Shylock. Somehow his tardiness, like his prodigality, never seems to obstruct his self-interest. Nor does he make much attempt to disguise his intentions—perhaps initially with Portia, but not at all with Antonio. In the first scene of the play, Bassanio admits to Antonio that he is "too prodigal" and that this manifests itself largely in his tendency to "[show] a more swelling port/ Than [his] faint means would grant continuance" (1.1. 124-125, 129). Not that Antonio is surprised by any of this. He has long been a soft touch for Bassanio. And now Bassanio asks him to dig into his purse again. He has "plots" requiring Antonio's money to unfold (1.1. 133), but he assures him that it is all "pure innocence" (1.1. 145). The purpose is "thrift" (1.1. 175), lots of it, enough to pay back all his debts to Antonio and more—an honorable sentiment, though Bassanio neither says nor does anything about the

old debts after he becomes rich. Bassanio's plot is to win the "lady richly left" who needs to be impressed by shows of the wealth of her suitors. If Antonio would agree to bankroll it, another show of "swelling port" in combination with his natural charms would guarantee success (1.1. 161-176). Nothing seems amiss to Antonio. He cannot deny him; and because he has no ready money or commodity to hand, he sends Bassanio to the money-lenders.

Shakespeare bases the episode in which Antonio becomes involved in Bassanio's plot on the biblical parable of the return of the prodigal son, the most conspicuous difference being its antithetical result. In Jesus' telling, the son quickly squandered his inheritance—half his father's wealth—in "riotous living" with "harlots" in a "far country" and was compelled into the lowest sort of menial labor (*Luke* 15: 13- 16, 30). He repented his prodigality, acknowledging it as a sin against heaven and his father, and set off to work as a hired servant in his own home (15: 17-20). His father saw him in the distance and rushed to welcome him back, embracing him before he could say a word about his repentance. The servants are called to dress him in new clothes and a feast is prepared. The father says, "bring the fat calf, and kill him, and let us eat, and be merry; for this my son ... was lost, and he is found" (15: 22-24). In Shakespeare's retelling the prodigal son returns entirely unrepentant. Bassanio asks for as much money again—the other half of the inheritance, as it were—to pursue a distant woman. He asks Antonio, the loving father-figure, to become complicit in his prodigality, and Antonio happily agrees. New clothes for Bassanio, and a feast. And the "fat calf"? The later *King James* version (1611) has the father call for the "fatted calf" with the pronoun "it;" but there is no ambiguity in the "him" of the *Geneva Bible*, nor is there any in the usual way of selecting and fattening a veal calf. It is not a female; and, in any event, Portia is already being eyed as a "golden fleece." The "fat calf" is the Jew.

When Antonio and Shylock hotly dispute the difference between direct and indirect profit-taking by way of biblical exegesis, the loan of three thousand ducats is not in question. Antonio is confident he will be able to cover it, if Bassanio for some reason were to leave him in the lurch: a full month before the due date, his argosies will have brought him nine times the value of the debt (1.3. 155-158). Shylock is confident of Antonio's wealth as well. He is already aware of Antonio's ventures abroad, and calculates the likely risks deliberately before concluding, "The man is, notwithstanding, sufficient" (1.3. 25). He agrees to the bond primarily because it is good business, but in part also because the need to come to terms might give him an opportunity to speak with Antonio in a reasonable manner (1.3. 29). Indeed, the prospect of such a conversation leads him to agree to the loan even though he too has no ready cash and must borrow the three thousand from Tubal (1.3. 52-55), a debt that later causes him some difficulty. The conversation does not go well. Instead of a civil chat about economics, Shylock must confront Antonio's anti-Semitic rage again. He suffers it, as he says is the way of Jews, with "a patient shrug" (1.3. 107-108). In response to being called a devil, a hypocrite and a villain "rotten at the heart" (1.3. 96-99),

Shylock does not allow himself to speak hatefully. Instead, he is pleasant, though with a sharp sarcastic edge: "You, that did void your rheum upon my beard/ And foot me as you spur a stranger cur/ Over your threshold! Moneys is your suit./ What should I say to you? ... 'Hath a dog money?'" or "for these courtesies/ I'll lend you thus much moneys" in "humbleness" (1.3. 115-127). The humorous weighing of the alternatives shows that he replies neither in anger nor humility. Antonio is unyielding. He will continue to curse Shylock, to spit on him and kick him in public; if Shylock is to lend the money, he should lend it to an "enemy," not a friend (1.3. 128-133). Antonio is now "storm[ing]" fiercely. And yet, Shylock's next words dispel his rage completely. His disposition changes so suddenly that he must laugh as he says, "Content, in faith" and agrees to the "merry sport" of the bond (1.3. 135, 144, 151). What could be so funny?

Shylock is warned not to lend the money as to a friend, but that is just what he does. He offers the principal at no interest, as Christians are said to lend to Christians and Jews to Jews. What is more, he effectively waives the forfeiture penalty as well. Neither Shylock nor Antonio think there is any chance that Antonio will be unable to pay the debt, so the monetarily worthless and legally unenforceable penalty that Shylock proposes is a further gesture of economic friendship in the Christian-bourgeois manner, another sign of his confidence in Antonio's solvency. To state it plainly: the bond is not, and cannot be a trap. Antonio has no doubt that it is not a trap. Bassanio's doubts are another matter; they say more about him, and about anyone who agrees with him, than about the bond. The bond is an offer of friendship and Shylock explicitly forgives Antonio when he offers it: "Forget the shames that you have stained me with," he says (1.3. 136). Returning kindness for hatred is something a Christian should be able to understand. In the Sermon on the Mount, Jesus says that even "publicans" are able to love those who love them; it is better to love one's enemies (*Matt.* 5: 44, 46). One should offer no resistance to evil; one should turn the other cheek when struck (5: 39). And one should even go so far as not to refuse anyone who would borrow money (5: 42). Such standards are impossibly high. Jesus says, "be perfect" (5: 48). But all human beings are imperfect and must fall far short. Everything we say and do is from mixed motives. Shylock's forgiveness, his offer of friendship, is made against the grain of his "ancient grudge," his privately admitted hatred of Antonio, and his fear of what might befall him and his "tribe" if he were to "forgive him" (1.3. 39-49). It is nonetheless honest. Antonio's recognition of the gesture and his sudden reversal, acknowledging that "there is much kindness in the Jew" (1.3. 152), is made against the grain of his publicly demonstrated hatred of Shylock. It too is honest. Of course, not all mixed motives are similarly mixed. Some people are more imperfect than others. Be that as it may, the forfeiture penalty effects a momentary reconciliation. And a large part of its effectiveness is the manner in which it seasons the gesture of friendship with humor. In suggesting the penalty, Shylock cites a popular anti-Semitic story, a version of the blood libel against the Jews so silly that even Antonio has to laugh. In medieval superstition, Jews were said to torture or crucify Christian victims in order to gather their blood for use in rituals or cures;

and such fables justified pogroms and collective executions.¹⁰ In the late 13th century, about the time Edward I expelled the Jews from England, an ancient and widely-told tale of a wager or loan against some quantity of flesh was given an anti-Semitic twist when it was adapted to the blood libel superstition in the poem *Cursor Mundi*, likely written by a Northumbrian priest: a Jew goes to court to claim a pound of flesh as penalty for a defaulted loan but is denied and then arrested because he is not entitled to a drop of Christian blood. A more baroque version of the same story was told in the 14th century by Giovanni Fiorentino in *Il Pecorone*. No matter whether Shylock read it in Middle English or in choicest Italian, he proposes a forfeiture penalty in which he mocks himself as the villainous Jew of the well-known story, the fictional Jew who serves symbolically as the limit case of anti-Semitic suspicion, the hapless Jew whose most demonic hidden desires are always thwarted in the end—the fool Jew who asks for flesh when any Christian knows it is the blood he wants. Once again: the forfeiture cannot be a trap. Shylock knows how the story ends. The bond's forfeiture is immaterial for sound economic reasons. It is also immaterial for somewhat less sound theological reasons. Shylock thus asks Antonio to sign a contract in which his darkest suspicions about Jews are treated as a fiction, a joke. He must agree, in writing and before a notary, that they are groundless and laughable and rise above them, just as Shylock, in offering his friendship, rises above his own hatred. And Antonio does—in his own way. "The Hebrew will turn Christian," he says (1.3. 177); but what he understands a good Christian to be remains uncertain.

When Shylock and Antonio appear before the notary later that day, they must agree to the wording of the contract. Shylock's suggestion for the wording of the penalty adds a specifying clause not found in the usual popular stories of the pound of flesh forfeiture. If his intention was to avoid the fate of the fool Jew, he need only have suggested "a pound of flesh, more or less, and any collateral blood." Instead, he changes the usual account that the flesh may be taken from wherever the Jew chooses to specify that it should be taken nearest the heart. Months later, in much different circumstances, Shylock tells the court: "'Nearest his heart,' those are the very words" (4.1. 252). But why these very words? Because on the day the bond is signed, its forfeiture penalty—the spirit of it, not the letter—is a circumcision of Antonio's heart. A good Christian, reading Paul's *Epistle to the Romans*, will learn: "he is not a Jew, which is one outward, neither is that circumcision, which is outward in the flesh: But he is a Jew which is one within, and the circumcision is of the heart, in the spirit, not in the letter" (*Romans* 2: 28-29). If he were to think no further about it, he might assume that this

¹⁰ In England (1190), the Jews of Norwich were killed in a pogrom on suspicion of having killed a boy decades earlier (1144); and the Jews of Lincoln were imprisoned, and many executed, on suspicion of similarly having crucified a boy (1255). The superstitions persist, sometimes emerging in unusual places: consider the scandal of the publication of Ariel Toaff, *Pasque di sangue: Ebrei d'Europa e omicidi rituali* (Bologna: Il Mulino, 2007).

reveals the difference between Christian and Jew; but he would be wrong, having been misled by Paul's disingenuous rhetoric.¹¹ Good Jews and Christians alike, reading *Deuteronomy*, learn the same thing from Moses' words: "Circumcise ... the foreskin of your heart, and harden your necks no more" (*Deut.* 10: 16)—a rather more vivid translation than the *King James* version, "be no more stiffnecked." A good Jew is not one who only follows the letter of the law; and a good Christian is nothing if not a good Jew. By rewriting the anti-Semitic tale of the pound of flesh in the spirit of Moses' figurative admonition to circumcise the foreskin of one's heart, adding it to the loan contract, and having Antonio sign it, Shylock not only secures Antonio's agreement to give up being stiffnecked and behave like a good Christian; he also manages to turn Antonio into someone whom Paul would recognize as a real Jew.

Christian and Jew, comedy and tragedy—when better looked into, remembering how simply money works and understanding religious references in the tenor in which they are made, the seemingly clear distinctions of *The Merchant of Venice* dissolve and everything turns into its opposite. What is more powerful in the imagination as a trope of exchanging gold and flesh than the Jew's bond? It overshadows the reality of Venetian slave-trading as completely as it eclipses the indecency of Portia's calculated resolve to give herself only to the man who chooses the casket in which her inheritance is contained (1.2. 104-106)—any man, regardless of his character and any revulsion she might feel toward his body, appearance, nationality, race or religion: even the Moor, a black and a Muslim (1.2. 127-129) ... even a Jew. It makes us hesitate to laugh at the unexpected joke Shylock makes at his own expense, an acknowledgement the denial of which we evade in bad conscience by laughing all the more when the new Jasons pass the time at Belmont bantering about the various ways flesh and gold are related, and by finding nothing at all funny when Antonio's friends play a pitiless practical joke on him. We are certain that the bond, on the day it is agreed, is what it eventually becomes; or rather, that it becomes what it is all along, what Shylock always intended it to be. None of us is so naïve as to read the bond as a loan contract: the letter is dead, only the spirit is significant. It must be read for intents, and Shylock's intents are transparent and unmistakable. But when we imagine we have discovered them, all we have discovered is the trope of the

¹¹ It would be impossible to list all those who have written on *The Merchant of Venice* misled in this way. Let one of the more amusing instances of the misreading stand for all: Shell, "The Wether and the Ewe," 73 fn. 46. In contrast, Andrew writes: "we should perhaps take Shylock's claim to Antonio's heart spiritually and not literally. The transcendence of the enmity between Antonio and Shylock depends upon one or other of them undergoing a circumcision of the heart." *Shylock's Rights*, 37. If the bond is not intended to transcend their enmity, then Masugi is surely right to claim that Antonio and Shylock are both "despicable men" and that the "infamous bond ... unites a premeditated murderer and a would-be suicide." "Race, the Rule of Law, and *The Merchant of Venice*," 207.

constant, unbendable Jew that Shylock himself invokes in the forfeiture penalty. We reveal ourselves to be as suspicious as Bassanio, who measures everything by his "own hard dealings" (1.3. 160). Even Antonio recognizes that the Hebrew turns Christian, though the effects of such an incredible thought are neither profound nor long-lasting. In *The Merchant of Venice*, Jews become Christians in several rather different ways. For Shylock, the commitment to live by his faith and his word in the bond has the immediate consequence of leading him to reconsider his unwillingness to eat and drink with Antonio and Bassanio (1.3. 31-35). With deep, conflicting misgivings—the worst of which are entirely justified, it turns out—he eventually accepts the repeated invitation that he join them for dinner. "I have no mind of feasting forth tonight," he tells Jessica; but swearing by "Jacob's staff," the staff Jacob evoked in prayer when he put himself and his entire family at the mercy of his brother (*Genesis* 32: 10-11), Shylock decides to go (2.5. 37-39). Without concern for *kashrut*, he joins Antonio, Bassanio and Lorenzo at table, in the spirit of Paul's *First Epistle to the Corinthians*: "If any of them which believe not call you to a feast, and if you will go, whatsoever is set before you, eat, asking no question for conscience' sake" (1 *Corinthians* 10: 27). Once there, he comes to understand something of the contradiction of Paul's *Epistle*: the communion of the flesh and blood of Christ cannot be shared with Jews; "You can not be partakers of the Lord's table and of the table of devils" (1 *Corinthians* 10: 21). And he learns something worse. Launcelot had already blurted it out in misspeaking: "they have conspired together" (2.5. 23). In *The Merchant of Venice*, the Christians all act the way they think Jews do. And what would Jews do? Under cover of darkness, while Shylock is at table, Jessica—his child, his flesh and blood—is abducted and hidden away, to bleed gold for them as a sacrifice to their idolatrous cult of prodigality.

His daughter disappears, his house is robbed, there is sufficient reason to suspect Antonio's complicity in a conspiracy—each of these far worse than being spat upon in public—and yet not even the compound effect of these shocks brings Shylock to consider the bond as much more than the notarized evidence of his foolishness. There are still doubts about Jessica; and Shylock pays Tubal all it costs either to find her or to resolve them (3.1. 87-89). In Tubal's recounting of the tales he has heard, Jessica is squandering the wealth that would have been her inheritance in riotous living in distant cities—a prodigal daughter whose shameful behavior would wound any father. But it is only when Tubal mentions that she traded his turquoise ring for a monkey that he is cut to the heart and weeps openly (3.1. 111-116). The ring is worthless; it is her disregard of its significance that reveals to Shylock the extent of the moral corruption she has suffered willingly through her secret involvement with Lorenzo. Only for that reason, and only then—perhaps as late as two months after the bond had been signed—does Shylock decide to "plague" Antonio (3.1. 109) by taking the bond's forfeiture penalty in a literal sense. Salerio, Solanio and their like never assume he intended anything else, of course (3.1. 48-49). But Shylock's understandable desire for "revenge," his desire to "better the instruction" of "the villainy" Christians teach him (3.1. 66-68), does not become a decision to act in a specific

way until Tubal returns with his stories and does everything he can to suggest to Shylock a relation between Jessica's fall and Antonio's impending bankruptcy, his motivations for doing so possibly including the fact that the three thousand ducats Shylock lent to Antonio were his. Even so, if it weren't for a silent agreement among Antonio's friends—the ones who assume Shylock would undoubtedly demand the penalty—to ignore him when he needs only three thousand ducats to be clear of it all, Shylock's desire for revenge would come to nothing. Even more, if it weren't for Antonio's curious willingness to play the unnecessary role of the sacrificial victim, Shylock's desire would come to nothing. More again: if it weren't for the Duke's peculiar reluctance to declare the bond null and void, the issue would not come to court. And most important of all: if it weren't for Portia's goading insistence that he has every legal right to the letter of the forfeiture penalty, Shylock would not whet his knife to revenge himself against Antonio's involvement in Jessica's abduction by showing him the literal meaning of the circumcision of the heart.

The imagery of the cutting of flesh in *The Merchant of Venice* is more significant, troubling and profound than the imagery of the exchange of flesh and money. Circumcision and sacrifice are both the cutting of flesh. And there is circumcision in more than two senses: there is outward circumcision, of the letter and the law; and an inward circumcision, of the heart; but there is also circumcision of the heart, of the letter and the law, a cutting inwardly; and one suspects there might therefore also be an outward circumcision of a different spirit, in the letter of a new law. There are also sacrifices. The meats laid out at every feast are taken from sacrifices of some sort. The tales of sacrifice Shakespeare uses in the composition of *The Merchant of Venice* describe the sacrifice of animals, the sacrifice of animals substituted for people, and even the shocking sacrifice of people as animals; that is their letter. The spirit in which Shakespeare uses them is always taken from their most ominous sense, the substitution of people for sacrificial animals.

For instance, Bassanio tells Antonio that Portia is "a golden fleece," or more precisely, that her "sunny locks" are a golden fleece (1.1. 169-170). The ram whose golden fleece ended up being won by Jason had been ritually slaughtered as a sacrifice to Zeus: after its neck had been slit to kill it and drain its blood, the fleece was removed when its flesh was cut, the first cut down the middle of its body. When Bassanio plays to win the caskets game at Belmont, he lingers over a description of the "golden locks" of a wig, the head that "bred them" now a "skull ... in the sepulcher" (3.2. 92, 96). And the way he stares at Portia when he does so makes her burst out: "Beshrew your eyes,/ They have o'erlooked me and divided me!/ One half of me is yours, the other half yours" (3.2. 14-16). She will not be Bassanio's fleece; she refuses to be a ram, a male animal. Portia would prefer to play the new Medea to Bassanio's new Jason. And like Medea before her, who killed and dismembered several males during her time with Jason—her own brother, King Pelias of Iochus, Jason's son (as well as his daughter)—Portia understands that the substitution of a human being for a sacrificial animal makes

for a distracting spectacle. The trip to Venice has an unambiguous, fixed and deadly goal: to butcher the old ram Shylock. The reason for it, however, is frivolous: to show up Bassanio. In place of her divided flesh and golden locks, she intends to cut Shylock in half and keep his fleece, his wig, his *peyes* and his *kippa*, as a trophy. Shylock's suffering and ruin, life or death, are a matter of indifference to her, as long as she can have her revenges on Bassanio. The audacious boy imagined he had won her in a game, that he had taken her ring from her, and everything to which it entitled him, and that she would thereby be required to recognize him as "her lord, her governor, her king" (3.2. 165). Perhaps that was part of what made him attractive. But when he returns to Belmont, he is promptly taught who will wear the pants in the family. Before they enter the house, Portia tells Bassanio and everyone assembled in the garden that it is "my house" (5.1. 273). Shylock's divided wealth is laid before them as the main course of a new dispensation, and she invites everyone into her house to hear the story of how she brought about Shylock's destruction. Bassanio follows along quietly. His humility is assured by the ritual of revenge to which Portia has subjected him: a symbolic cutting of his flesh. First, the ring. Before its loss is acknowledged, she describes it as "A thing stuck on with oaths upon your finger,/ And so riveted with faith unto your flesh" (5.1. 168-169). Of course, she has already cut it off: an outward circumcision in a new spirit. Before she produces it to embarrass him, he considers enduring something far worse, an emasculating self-inflicted wound: "I were best to cut my left hand off" (5.1. 177). But the choicest morsel of all is his confession, in answer to which her reply is ready. She divides him in half with her eyes: "Mark you but that!" she says at the right moment, "In both my eyes he doubly sees himself;/ In each eye, one" (5.1. 243-245).¹²

When Antonio first sent Bassanio to the money-lenders, Shylock was selected as the "fat calf" for the prodigal feast. Antonio, Bassanio and Lorenzo "conspired together" to bring about his slaughter, but it took Portia to finish him off. In other words, the "harlot" had to come from the "far country" in order for the feast prepared by the father and son to be a complete success. A "fat calf" is a male calf born in a dairy herd; he is raised to produce veal, and "fatted" by being castrated and continually milk-fed. Castration is a cutting of flesh. If Shylock is the "fat calf" of *The Merchant of Venice*, when is he castrated? When his daughter – his only flesh and blood, his only hope of family and descendants – is

¹² In his study of the play as a tale of "love and marriage" the exclusive intent of which is to have Portia and Bassanio "live happily ever after," Michael Zuckert goes so far to deny the tragedy of Shylock that he claims the presentation of Portia and Bassanio as a "new" Medea and Jason is superseded by imagery of them as a new Hesione and Heracles, and ultimately by imagery of Portia as a "new or reverse Pilate." He is completely charmed by Portia. "The New Medea: On Portia's Comic Triumph in *The Merchant of Venice*," in *Shakespeare's Political Pageant: Essays in Literature and Politics*, eds. Joseph Alulis and Vickie Sullivan (Lanham: Rowman and Littlefield, 1996), 10, 17, 24, 31.

suddenly taken from him. Jessica is torn in her decision to leave, confessing that it is a "heinous sin" to be "ashamed" to be Shylock's child (2.3. 16). Even as she robs the household, she is torn: "I will make fast the doors," she tells Lorenzo before descending, "and gild myself/ With some more ducats" (2.6. 50-51). Locking the doors, as Shylock bid her do (2.5. 54), when there is no longer a reason! And, putting aside the need to adorn herself in order to satisfy Lorenzo's desire for Shylock's wealth, his *gelt*, why does Shakespeare have her say she will "gild" herself? To suggest her "guilt"? To suggest she is "gelt" (cf. 5.1. 144)? To suggest that in this scene Shylock himself is "gelded," castrated? In Solanio's report of Shylock's reaction to discovering his house ransacked and Jessica gone, exaggerated with what passes for humor among anti-Semites, the imagery of castration is unmistakable: "My ducats, and my daughter!" Shylock is said to have cried, "A sealed bag, two sealed bags of ducats, .../ And jewels, two stones, two rich and precious stones,/ Stol'n by my daughter! Justice! Find the girl!/ She hath the stones upon her, and the ducats" (2.8. 17-22).¹³ Later at Belmont, when she recalls the masque, Jessica is ashamed of her complicity in what was done to her father: "I am never merry when I hear sweet music," she says (5.1. 69)—her last words in the play. Lorenzo, in contrast, does not consider her one of the boys; she is his own fleece, and still more Jew than Christian. In explaining her sadness for her, he likens her to an animal in "a wild and wanton herd" (5.1. 71). The news of her father's fate must astound Jessica. Lorenzo seems to have expected as much, if not to hear of it from Portia. When Portia spreads out Shylock's wealth for the prodigal feast that concludes the play, she has Nerissa give Lorenzo and Jessica "a special deed of gift" from Shylock "of all he dies possessed of" (5.1. 292-293). For Lorenzo, it is not just money: "Fair ladies," he says, speaking as Antonio does, "you drop manna in the way/ Of starved people" (5.1. 294-295). For Jessica too, it is not just money; she says nothing. And for Portia least of all is it just money. But what does she imagine she is doing? No matter whether it is Shylock's body, his milk-fed flesh, or his life's-blood, why does she offer it to Shylock's own kid?

On the surface, it is all just a light-hearted bagatelle. A tense courtroom encounter with a cunning enemy in which fortunes and lives are at stake becomes the stuff of pleasantries with guests over dinner in which one presents oneself disingenuously as a reluctant participant—above it all and thus triumphing effortlessly—without seeming too vain, of course; and how much the better if a few digs at one's spouse are possible in the telling of it? The revels of Portia's return to Belmont are the origins of the modern sitcom, in which the ruthlessness of capitalist competition seems no longer to exist once the threshold of the bourgeois home is crossed, and the ostensibly unrelated conflicts between spouses, with the children, and against the neighbors are all harmless fun. The pattern is second nature to us in late modernity, but in Shakespeare's time the bourgeois household had not yet fully developed. Perhaps because it was still in its origins, Shakespeare's sketch of its excesses in the comedy of Portia's Belmont

¹³ Cf. Shell, "The Wether and the Ewe," 62-63.

could be both amused and incisive: not only philistine, but always already grotesque. Consider the tricks Bassanio and Portia play on one another. The counsel that Bassanio gives Gratiano before their voyage to Belmont is an application of Machiavelli's *Prince* to everyday affairs, even romance. It is no "fault," he says, to be "too wild" or "too liberal." It all depends on the circumstances and one's "hopes." Sometimes you must hold a prayer book and "Use all the observance of civility;" sometimes you must "put on/ Your boldest suit of mirth" (2.2. 172-195). Virtue and vice are both appearances, outward show, to be used whenever appropriate and necessary for success; neither touches what one is. When Portia has "confirmed, signed, [and] ratified" (3.2. 148) his initial victory, Bassanio feels confident enough to confess what he is: "worse than nothing" (3.2. 260). However, Portia is more than a match for him. After his departure for Venice, she comes up with a similar "device" for revenge. She lets it be known that she and Nerissa will travel to a convent to pray for their husbands' welfare (3.2. 310; 5.1. 114); instead, they too will travel to Venice, so well disguised as men—those swaggering, "bragging Jacks"—that their husbands "shall think [they] are accomplished/ With what [they] lack" (3.4. 61-2, 77). The habits of virtue and of vice are equally easy for women to put on, it would seem. Her secret business in Venice is to show that she can beat Bassanio at his own game. And she does, in every respect. Bassanio had borrowed money, put on an appropriate appearance, traveled to the domestic or female realm of Belmont, and picked the right casket (with Portia's help), winning the prize—her ring—to show off to the boys back home. To better him, Portia borrows words from Bellario, puts on the appropriate appearance, travels to the public or male realm of Venice, and wins a high-stakes legal game, after which she collects the trophies that she shows everyone back home in Belmont.¹⁴ Their shared homey Machiavellianism makes them a happy, perfectly compatible couple.

In order to have her fun with Bassanio, Portia must triumph at court. To triumph, saving Antonio is necessary, but not sufficient; it must be done in a certain way. When Portia arrives at court, she is prepared to play a glorious role in a script written for her by her cousin Bellario and she has no intention of deviating from it; nor does she have the ability to do so, apart from the odd improvisation. In other words, Portia has no intention of being merciful; what is

¹⁴ The general sense of Portia's character, if not the detail of her plotting, is captured in Karoline Szatek's sketch: "While Portia merits such praise that describes her—intelligent, generous, selfless, witty, and even charming—she, like Machiavelli, will employ any means necessary to suit her end. The play evidences some of her tools to capitalize on her endeavors: manipulation, conspiracy, craftiness, humiliation, lies, fraud, disenfranchisement, and assuredly, that offshoot of capitalistic mercantilism, usury." *"The Merchant of Venice and the Politics of Commerce,"* in *The Merchant of Venice: New Critical Essays*, eds. John W. Mahon and Ellen Macleod Mahon (New York: Routledge, 2002), 348.

more, she has no intention of being just; nor does she intend to follow legal procedure. Legalities would certainly get in the way of the performance. The rule of law in Venice is more honored in the breach than in the observance, but it nonetheless serves as a measure of the degree to which her performance is illegal. Portia appears in court in disguise and gives a false name; she presents false legal credentials; she gives false witness; and there is also the subtlety of her conflict of interest as the wife of one of the involved parties. She seems to know nothing of the difference between contract law and criminal law—a convenient ignorance that allows her to be shameless when she engages in entrapment. And she also cannot tell the difference between a civil and an ecclesiastical court. Although she is none the wiser, Bellario's script disregards such legal niceties in a deliberate and premeditated way, distorting them to obtain a desired result; and laws that are deliberately distorted are thereby acknowledged—they are thus neither absent nor superceded by higher laws, real or imagined. Shylock's legal action is itself a strange one, with an extra-legal twist: he is using the literal sense of a laughable popular story that found its way into the bond's forfeiture penalty in order to hound Antonio as far as the law will allow and thereby obtain some satisfaction of his desire to be revenged for what Antonio and the others had done to Jessica. For Shylock, it is all about Jessica. If she were to return to Venice, he would likely receive her as the prodigal daughter and simply walk away from the court. The extent to which the law allows his nuisance suit to proceed is also unusual. Antonio's willingness to be sacrificed aside, the Duke cannot summarily dismiss Shylock's action on grounds of its illegality without further angering the "synagogue" of Venice's money-lenders. It would suit his circumstances if Shylock could be defeated in such a way as to serve as an example to them all. And that requires Bellario's cleverness. Neither when Shylock mixed the legend of the hapless Jewish usurer with contract law, knowing how the story ends, nor when he decided to act legally on the literal sense of the bond's penalty did he imagine that the law could be distorted so far that it could be transformed into a fable. When Portia "refutes" his case with the legend's own quibble that his entitlement to the flesh is not an entitlement to a drop of blood, Shylock is astonished: "Is that the law?" he asks. Portia might use a law-book as a prop when she replies, "Thyself shalt see the act" (4.1. 312), but there is no such law, nor can there be. Her words simply mean: it will be done.

To make the old story come true, Bellario's script plays a shell-game with legalities and covers the sleight-of-hand with religious obscurantism. First, the legalities. The court is in session for a hearing about a loan contract with an unusual penalty. It might be legal to draw up a contract with a penalty that is unenforceable, but it is not thereby legal to enforce it. Is Shylock's penalty enforceable? Only in a *laissez-faire* fantasy in which anything two people write on paper and sign is binding. It cannot be enforced, and therefore the penalty—not the loan itself—is null and void. However, if it could be enforced without violating other laws, then Shylock would have every right to proceed, should he choose to do so; but he would be under no obligation to proceed. When Portia

informs him, with great dramatic effect, that the forfeiture is unenforceable, Shylock presses the case no further. Despite being denied the principal itself, he turns to leave the court. And he has every right to do so, having done "no wrong" (4.1. 89). But Portia stops him, claiming that the legal circumstances are entirely different. In one brief speech, without interruption and without allowing Shylock a word in his own defense, she arrests him on charges of "direct [and] indirect" attempted murder, she finds him guilty of the charges, and she pronounces sentence (4.1. 344-361). How does a hearing about Antonio's debt suddenly turn into Shylock's trial for a capital offense? The brazenness of the transformation conceals the swarm of contradictions and illegalities involved.¹⁵ Portia suggests that the bond itself is an "indirect" act of attempted murder, and she says indirect attempts are equivalent to "direct" attempts. If so, the bond would have been a crime on the day it was drawn up and Shylock should have been arrested, if not immediately then certainly as soon as he entered the court. And if so, Portia's repeated statements in court that the bond is perfectly legal are simply lies. She cannot have it both ways: if the bond is an act of attempted murder, it is not a valid contract; and if it is a valid contract, it is not an act of attempted murder. In order to have it both ways—or rather, to create the illusion of having it both ways—she must engage in a peculiar sort of entrapment. Portia's insistence on the ostensible legality and enforceability of the forfeiture is intended to provoke Shylock into raising the knife. Once he does so, the scene is set for her theatrical obfuscations. Getting Shylock to raise the knife in court creates the impression of "direct" attempted murder, allowing the bond itself to seem as if it were "indirect" attempted murder, thus further allowing the kangaroo court established after the conclusion of the loan hearing to seem as if it were merely the sentencing stage of an ongoing trial on a capital charge.¹⁶

Portia's staying of the knife is both courtroom drama and religious spectacle. The proceedings had already been given a religious cast from Antonio's willingness to be a martyr to a Jew's rapacity, but Bellario's script calls for Antonio to play a slightly less important role than the one he covets. He might imagine himself as Jesus before Pilate (*Matthew* 25), but Jesus was not made to bare his breast for the knife; the script instead calls for him to play the part of Isaac. In the *Akedah* (*Genesis* 22), God commands Abraham to sacrifice his son Isaac. After he had dutifully bound Isaac and placed him on an altar, Abraham "took the knife to kill his son;" but then the "Angel of the Lord," speaking in

¹⁵ For a discussion of the opposing view that Venice is entitled to prosecute Shylock, replete with references to William Blackstone's *Commentaries*, see Shell, "The Wether and the Ewe," 70-72.

¹⁶ Martin Yaffe claims that only the "uninformed" would see this as entrapment. He argues, instead, that "to more discerning eyes" Portia is obviously undertaking a "delicate public-spirited attempt to extricate Shylock from his grim predicament as an alien who deliberately endangers a Venetian citizen's life." *Shylock and the Jewish Question* (Baltimore: Johns Hopkins University Press, 1999), 84.

God's voice, called to him "from heaven" saying, "Lay not thine hand upon the child, neither do anything unto him." When Abraham looked around he saw "there was a ram behind him caught by the horns in a bush," and he "took the ram and offered him up for a burnt offering in the stead of his son" (*Genesis* 22: 10-13). The tale is marred a bit in Bellario's retelling of it, in order to make it more "Christian." Antonio is bound and prepared for the knife, as was Isaac; Shylock takes the knife, as did Abraham; and Portia stops him, speaking Bellario's lines, as the Angel stopped Abraham. However, Abraham is a Hebrew, and the first of them; his faith and obedience to God cannot be venerated, as they are in the *Akedah*, because the Old Law has been superceded by the Word of the New Law. Bellario's retelling thus makes Abraham take the place of Isaac; he becomes Abram again, the Abram not of the covenant, the ram for slaughter. And so, following the script, Portia offers up the Jew in place of Antonio. Portia enjoys announcing the new Word, not only because it allows her to play Angel of the Lord in public, but more because it enables her to accomplish what she set out to do in Venice. This New Law entirely reverses the Old, and where a ram was substituted for a human being, a human being may now be substituted for a ram. Shylock is thus sacrificed in her place as the ram with the golden fleece, freeing her to play Medea to Bassanio's Jason.

In the moments before Portia reveals the significance of the quibble over flesh and blood by forcing him to his knees to "beg mercy of the Duke" (4.1. 361), Shylock had not mistaken her for an Angel, but he had responded enthusiastically to being told that the bond's forfeiture was legal and unalterable by crying out, "A Daniel come to judgment! Yea, a Daniel!" (4.1. 221). Why Daniel? Because Shylock is thinking about Jessica, not about the bond. In the *Story of Susanna*, included in the Apocrypha of the *Geneva Bible*, two elders and judges of the tribe of Israelites in Babylon, corrupted by Babylonian "iniquity" (v. 5), accosted Susanna, an "innocent and righteous" woman (v. 53), when she was alone in her garden. She refused their sexual advances, but the elders succeeded in persuading the Israelites that she should be condemned to death for an adultery she did not commit. In response to her prayers, "the Lord raised up the holy spirit of a young child, whose name was Daniel" (v. 45). He saved her "innocent blood" (v. 62) by interrogating the elders separately, saying to each of them, "the Angel of God waiteth with the sword to cut thee in two" (vv. 55, 59). When their testimony was contradictory, they were put to death. Jessica is Shylock's Susanna.¹⁷ She was raised "according to the Law of Moses" by God-fearing parents (vv. 2, 3), and was abducted by a conspiracy of respected Venetians, Antonio first among them, who bore false witness against her, saying that she had willfully joined in the Venetian iniquities. Shylock will not believe this of Jessica; and Portia's unexpected support of the legality of the bond's forfeiture, allowing him to imagine that it is righteous to be avenged on Antonio

¹⁷ Shakespeare's eldest daughter was named Susanna; and during the period in which he wrote *The Merchant of Venice*, she would have been coming of age; she was 15 years old at the time of its first performance in 1598.

by cutting him, as it were, "in two" makes Portia seem a Daniel, saving the honor and even the life of his child. But Portia's ruse leads Shylock to be completely deceived about who she is and whom she intends to cut in half. She is not "a Daniel" (4.1. 221), but rather "a second Daniel" (4.1. 331, 338), as the gleeful Gratiano identifies her after she pronounces sentence against Shylock. Of course, Gratiano is deceived by Portia's ruse as well. She is no Daniel at all, but rather a Balthasar—and a second Balthasar at that, having taken her pseudonym from her servant. A second Balthasar. The name suits her perfectly. One might even say it is not a false identity at all.

As the story is told in *The Book of Daniel*, the first Balthasar, or Belshazzar, was the last king of Babylon. Daniel was present at his court, not known as Daniel but rather as Belteshazzar, the Babylonian name he had been given. The two names are derived from Bel or Baal and Beltis, respectively the highest male and female Babylonian gods: Belshazzar is "Bel protect his life" and Belteshazzar is "Beltis protect his life." The short reign of king Belshazzar came to an end when he gave a great feast at which he "commanded to bring him the gold and silver vessels which his father Nebuchadnezzar had brought from the Temple in Jerusalem, that the king and his princes, his wife and his concubines, might drink therein. ... At the same hour appeared fingers of a man's hand which wrote ... upon the plaster of the wall of the king's palace" (*Daniel* 5: 2, 5). Belshazzar trembled in fear; and, not knowing Aramaic, called for someone to read and interpret the text. Daniel interpreted the writing on the wall to mean that "God hath numbered thy kingdom and hath finished it;" that night Belshazzar was slain and the kingdom fell (*Daniel* 5: 26, 30). Portia is nothing like Daniel. Shakespeare presents her, instead, as the opposite or the symbolic inversion of Daniel, and as a second Belshazzar, first ruler of a new Babylon. Daniel, a man, appears in court with the name Belteshazzar, honoring the female divinity Beltis; and some suggest that the time he spends with the court eunuchs indicates he is one of them. In contrast, Portia, a woman, appears in court with the name Belshazzar, honoring the male divinity Bel or Baal; and she would have everyone assume she is a man. Daniel reads God's text, both the letter and the spirit, and interprets it to indicate the fall of Babylon. In contrast, Portia only repeats the literal sense of Bellario's text, but cannot interpret it; and a new Babylon arises the next day. The fall of Babylon was hastened by the first Balthasar's use of the treasures of Jerusalem for a feast. In contrast, Portia's feast the next day lays out Shylock's treasures for all to enjoy. A new dispensation is announced. A second Balthasar rules in Belmont, the Mount of Bel or Baal; and her court theologian, her interpreter of sacred text, is Bellario, whose name is "the word of Bel."¹⁸

¹⁸ Szatek writes: "By the end of the play, Belmont clearly materializes as even more tainted by capitalism than perhaps Venice ever was." She also suggests that Shakespeare used *The Merchant of Venice* "to forecast that England was headed in a Belmont direction: corruption, prejudice, fraudulence, usury, treachery, infidelity, religious mockery, and disregard for human rights all

The critical theory of modernity begins in *The Merchant of Venice*. The first modern household is established by Portia and Bassanio, whose comic banter as the Medea and Jason of our time, leavened with the vocabulary of the revelatory tradition, has become universalized in our discourse without recognition that it expresses a domesticated form of Machiavellianism capable of masking behavior as ruthless as Barabbas's, Marlowe's Machiavellian Jew. The effective truth beneath the vulgar comedy is the tragedy of Jessica and Shylock and the cruelty of Shylock's punishment: the "uttermost horror" of modernity is already evident in it. In *The Merchant of Venice*, we see modernity emerge from the totalizing impetus of Christian anti-Semitism: the Christians all act the way they think Jews do, while scapegoating them hypocritically; and from the inversion there arises not a New Jerusalem, but rather the New Babylon. Belmont is the Temple of the New Babylon, in which the stories of the golden fleece and the fat calf are told, but only the golden calf is worshipped. To be admitted to the rites of the Temple, one must come to love Portia as do Bassanio, Gratiano, Lorenzo and Antonio. She must first be recognized as Balthasar, a man dressed in the austere robes of a Doctor of the Law. He asks us for our gold rings and we give them. We remove them from our fingers to symbolize the new circumcision, and we offer them that they might be thrown into the fire from which the golden calf will emerge (*Exodus* 32: 2-3). And when the gold is returned to us, we must welcome it as "life and living" (5.1. 286), gratefully eating it as "manna" (5.1. 294) and drinking it ground up in our water (*Exodus* 32: 20). A horrifying thought, perhaps, but not a surprising one. Adorno's mentor, Walter Benjamin, writes: "There is no document of civilization which is not at the same time a document of barbarism."¹⁹ There is undoubtedly barbarism in *The Merchant of Venice*. Shakespeare inscribes it deliberately. But there is no barbarism in Shakespeare.

existed and seemed to be getting worse." *"The Merchant of Venice and the Politics of Commerce,"* 333, 349. Masugi concurs. He argues that Shakespeare wrote the play "to educate the audience to the terrifying potential of the new, emerging cosmopolitan world." "Race, the Rule of Law, and *The Merchant of Venice*," 198. More specifically concerning Shakespeare's depiction of Belmont, Susannah Heschel writes: "Belmont exists as a ghetto of Christians, who practice not the universalism that is said to characterize their religion but the kind of particularistic, ethnic exclusiveness long said to characterize Jews. Portia, the Christian, governs not by mercy but by stern and relentless law." Susannah Heschel, "From Jesus to Shylock: Christian Supersessionism and *The Merchant of Venice*," *Harvard Theological Review* 99.4 (2006), 430.

¹⁹ Walter Benjamin, "Theses on the Philosophy of History" (1940), in *Illuminations*, ed. Hannah Arendt, trans. Harry Zohn (New York: Schocken, 1968), 256.

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